

ASSIGNMENT AGREEMENT

ASSIGNMENT OF CONTRACT OF SALE

THIS ASSIGNMENT OF CONTRACT OF SALE (the "Assignment") is made and entered into this _____ day of _____, 20_____, by and between _____ ("Assignor"), and _____ ("Assignee"), regarding the contract executed for the purchase of the property known as _____ (the "Property"), _____ County, Texas.

WITNESSETH

Assignor hereby transfers and assigns all of its right, title, and interest under the above contract to Assignee.

For good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Assignor hereby transfers, conveys, sells, assigns, and sets over absolutely unto Assignee all right, title, interest, powers, obligations, options, and privileges in, to, and under that certain Purchase and Sale Agreement dated _____ for the real property located at _____ (the "Contract").

Assignee accepts the assignment and assumes and agrees to perform all obligations of the purchaser under the Contract arising from and after the date of this Assignment. Assignor represents that the Contract is in full force and effect, that Assignor has not previously assigned it, and that all earnest money deposited under the Contract, in the amount of \$_____, is held by _____ (title company).

The assignment fee payable to Assignor is \$_____, due at closing through the title company unless otherwise agreed in writing. The purchase price payable by Assignee under the Contract is \$_____. The closing date is _____.

This Assignment shall be binding upon and shall inure to the benefit of the parties and their respective successors, assigns, and legal representatives. This Assignment shall be governed by the laws of the State of Texas, and venue for any dispute shall lie in the county where the Property is located. Assignor, or its principal, is a licensed Texas real estate agent and discloses that it is acting as a principal in this transaction.

IN WITNESS WHEREOF, the undersigned parties have executed this Assignment on the date first written above.

ASSIGNOR

Signature

Printed name and title

Date

ASSIGNEE

Signature

Printed name and title

Date

Template for review by counsel before use. Confirm that the underlying Contract permits assignment and that any required seller consent has been obtained.